

OF THE OBJECT PROPOSED BY THE TRUST.

TRUSTS, with reference to their *object*, are *Lawful* or *Unlawful*: the former, such as are directed to some legitimate purpose; the latter, such as are in contravention of the policy of the law.

SECTION I.

OF LAWFUL TRUSTS.

1. **Intention.** — The *general and prima facie* rule is, that the intention of the settlor is to be carried into effect (a).¹

2. **No objection to a trust because the legal estate cannot be so dealt with.** — If the object of the trust do not contravene the *policy* of the law, the mere circumstance that the same end cannot be effectuated by moulding the *legal* estate is no argument that it cannot be accomplished through the medium of the *equitable*. The common law has interwoven with it many technical rules, the reason of which does not appear, or at the present day does not apply; but a trust is a thing *sui generis*, and, where public policy is not disturbed, will be executed by the Court.

3. **Fee upon a fee.** — In legal estates, for example, a fee cannot, except by executory devise, be limited upon a fee — that is, cannot be shifted from one person to another; but this modification of property was allowable in uses, and by the statute of Hen. 8. has gained admittance into legal estates, and the shifting of the fee from one person to another

(a) Attorney-General v. Sands, 195, per Sir T. Clarke; and see Attorney-General v. Dedham School, 23 Hard. 494, per Lord Hale; Pawlett v. Attorney-General, ib. 469; Bacon on Uses, 79; Burgess v. Wheate, 1 Eden, Beav. 355.

¹ Wright v. Miller, 8 N. Y. 9; 59 Am. Dec. 438.